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Case Number: 25PSCV02609 Hearing Date: August 17, 2026 Dept: 6

CASE

NAME: Golden

Heights Investment, LLC v. Laser Land, LLC

Plaintiff

Golden Heights Investment, LLC's Motion to Enter Judgment for Possession of the Premises and Money Judgment

TENTATIVE

RULING

The Court CONTINUES the hearing on Plaintiff Golden Heights Investment, LLC's Motion to Enter Judgment for Possession of the Premises and Money Judgment with directions that Plaintiff submit supplemental documentation supporting the amounts requested. The Court will provide the continued hearing date and deadline for submitting the supplemental documentation at the hearing on this Motion.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a commercial unlawful detainer action. On July 16, 2026, plaintiff Golden Heights Investment, LLC (Plaintiff) filed this action against defendant Laser Land, LLC (Defendant) and Does 1 through 30, alleging the sole cause of action for unlawful detainer.

On November 21, 2025, the parties submitted a stipulation for entry of judgment.

On January 20, 2026, the Court dismissed the action without prejudice and with the Court retaining jurisdiction under Code of Civil Procedure section 664.6.

On June 30, 2026, Plaintiff moved to enter judgment for possession of the premises and money judgment. Defendant did not oppose the Motion.

LEGAL STANDARD

“If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” (Code Civ. Proc., § 664.6, subd. (a).)

“A party may file a motion or other document pertaining to the settlement, including an application for determination of good faith settlement, a motion for the reduction or determination of a lien, a petition related to the compromise of the claim of a minor or person with a disability, or, if the terms of a settlement are not performed, a motion based upon such terms. Responsive filings and related documents may also be filed.” (Code Civ. Proc., § 664.6, subd. (f)(1).)

DISCUSSION

Plaintiff seeks for the Court to enter an order vacating the dismissal in this case and entering judgment for possession of the premises. More specifically, Plaintiff seeks: (1) a writ of possession; (2) a judgment in the amount of \$265,819.41, i.e., \$263,261.62 plus accrued rent and interest in the amount of \$247,557.79 less payments made, with the amount totaling

\$245,000.00; (3) a declaration of forfeiture of the lease; and (4) for restitution of the premises. Plaintiff contends the parties entered into a stipulation for entry of judgment (the Stipulation) wherein the parties agreed that the total amount due from Defendant as of the date of the Stipulation was \$263,261.62, that if Defendant defaulted and failed to cure the default within three days' notice, Plaintiff could obtain a judgment against Defendant in the amount of \$263,261.62 plus unpaid and accrued rental and interest less payments made, for restitution of the premises, for a declaration of forfeiture of the lease, and for the clerk of the Court to issue a writ of possession. Plaintiff contends it gave the agreed upon notice of default on June 11, 2026, after Defendant failed to make payments, that Defendant failed to cure the default, and that Defendant failed to return possession of the premises.

The Court finds Plaintiff's Motion proper to the extent that it seeks entry of judgment based on the parties' stipulation, but the Court needs more information to assess the amounts requested. The Stipulation provides for the Court's continuing jurisdiction under Code of Civil Procedure section 664.6 and the Court's January 20, 2026 dismissal order indicates it was without prejudice and to retain jurisdiction under section 664.6. (Stipulation (11/21/25), ¶ 17; Order of Dismissal (1/20/26).) Plaintiff's evidence also shows that Plaintiff gave notice of default to Defendant and contends that Defendant failed to cure the default within the three-day time period provided in the Stipulation. (Stipulation (11/21/25), ¶ 12; Weinberg Decl., ¶¶ 8-11, Exs. B-C.) However, it does not appear that Plaintiff provided a declaration from someone with personal knowledge of the payments made by Defendant and of the default by Defendant.

Moreover, Plaintiff's calculations are not fully explained. The only clear number provided is the \$263,261.62 in past due rent from the Stipulation. (Stipulation (11/21/25), ¶ 3.) Plaintiff provided no evidence showing how it calculated the \$247,557.79 in rent and interest or the \$245,000.00 in payments. (See generally, Weinberg Decl.) Plaintiff needs to show how these amounts were calculated. (See *Gauss v. GAF Corp.* (2002) 103 Cal.App.4th 1110, 1123, italics in original ["The court may consider evidence beyond this writing in deciding a section 664.6 motion, but only to determine what settlement terms the parties previously agreed upon"].)

Also, the Stipulation does not provide for recovery of interest. (See generally (11/21/25).) The Court may not add interest when the Stipulation does not include it or otherwise provide for it. (*BTHHM Berkeley, LLC v.*

Johnston (2024) 100 Cal.App.5th 1220, 1225 [“Section 664.6 authorizes the trial court to enter a judgment reflecting the terms of the parties’ settlement agreement—nothing more, and nothing less”].) Plaintiff’s request for interest is therefore improper. Additionally, given the lack of calculations, it is unclear to what extent Plaintiff’s judgment request improperly includes prejudgment interest.

Based on the foregoing, the Court CONTINUES the hearing on this Motion with directions that Plaintiff submit supplemental documentation supporting the amounts requested. The Court will provide the continued hearing date and deadline for submitting the supplemental documentation at the hearing on this Motion.

CONCLUSION

The Court CONTINUES the hearing on Plaintiff Golden Heights Investment, LLC’s Motion to Enter Judgment for Possession of the Premises and Money Judgment with directions that Plaintiff submit supplemental documentation supporting the amounts requested. The Court will provide the continued hearing date and deadline for submitting the supplemental documentation at the hearing on this Motion.

Plaintiff is ordered to give notice of the Court’s ruling within five calendar days of this order.